

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MAVL CAPITAL INC., IAM & AL GROUP INC., AND MAXIM OSTROVSKIY, *Complainants*

v.

MARINE TRANSPORT LOGISTICS, INC. AND DMITRY ALPER, *Respondents*.

DOCKET NO. 16-16

Served: December 10, 2020

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

REMAND SCHEDULING ORDER

On October 29, 2020, the Commission issued a memorandum opinion and order remanding the section 41102(c) claim regarding the Mercedes for further proceedings. In addition, the claim regarding the Porsche had been stayed pending the Commission's order. On October 30, 2020, an order was issued requiring the parties to file a status report addressing the next steps in this proceeding.

On December 2, 2020, the parties filed a joint status report ("JSR"). The parties have been advised that discovery exchanged in other litigation may be used in this proceeding. In the JSR, Complaints identify five areas where they request additional discovery and both sides state their positions on each discovery request.

Complainants request the lease agreement for the storage lot where the Mercedes and Porsche were stored, invoices, and proof of payment; a copy of MTL's Service Contract No. 644011; and a response to an interrogatory regarding whether MTL acted as a Beneficial Cargo Owner or NVOCC with regard to the shipment of the subject automobiles to Dubai, or alternatively, a subpoena to ocean carrier Maersk. The lease agreement and service contract are not necessary to determine whether there was a violation of section 41102(c) for the two vehicles at issue. The interrogatory asks about issues in the proceeding which can be addressed in the parties' briefs. Accordingly, these requests are denied.

Complainants also request five MTL itemized invoices for storage of the Mercedes and proof that the invoices were actually provided to Complainants; and all documents, emails, writings, notes, receipts, correspondence and the like identifying, indicating, or otherwise demonstrating the manner in which MTL issued and provided any MTL itemized invoices for warehouse storage to Complainants for storage of the Porsche. If Respondents intend to rely on these documents, they should have already been provided to Complainants. If they have not, any responsive documents should be provided by the deadline below.

Finally, Complainants request all documents, emails, writings, notes, receipts, correspondence and the like identifying, indicating, or otherwise demonstrating the manner in which Car Express & Import Inc. became listed as the exporter and U.S. Principal Party in Interest (“USPPI”) for the Mercedes. This is the only discovery sought that is identified as relevant to the issue of whether the claimed acts were occurring on a normal, customary, and continuous basis. Respondents are ordered to respond to this request by the deadline below.

The parties have exchanged discovery in a related federal court proceeding and will be given time to provide the discovery required above. Any additional discovery requests should be identified with particularity in the parties’ briefs.

The briefs must be limited to the pending issues, including the Porsche and the 41102(c) claim regarding the Mercedes. The parties should address whether or not the Respondents were acting as regulated entities for the Porsche and should address all five elements required by 46 C.F.R. § 545.4 to establish a successful 41102(c) claim. The parties should review the initial decision on remand issued in FMC Docket No. 15-04. If the parties decide to settle this proceeding, they must submit a motion for approval of the settlement with a copy of the settlement agreement.

All requests for extensions will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to a prevailing party. It is therefore in the best interests of both parties to proceed expeditiously.

January 5, 2021	Respond to discovery as outlined above.
January 27, 2021	Complainants file brief, proposed findings of fact, and appendix.
February 24, 2021	Respondents file opposition brief, proposed findings of fact and responses to Complainants’ proposed findings of fact, and appendix.
March 10, 2021	Complainants file reply brief and responses to Respondents’ proposed findings of fact.

The parties’ briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party’s] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e).

2. **[Party's] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited as nearly as practicable to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
3. **[Party's] Responses to [Party's] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact with the hard copies of the response to [Party's] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
4. **[Party's] Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
 - a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2, CX 3 or RX 1, RX 2, RX 3, etc. The appendix should be secured in a three-ring binder or spiral bound;
 - c. The appendix must begin with a table of contents identifying the page at which each individual document begins;
 - d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (see 502 C.F.R. § 502.7); and
 - e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix. *There should be no duplicate documents in an appendix.*
5. **Service and Filing.** The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to send the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.

Currently, due to COVID-19 restrictions, all filings should be submitted by email. *See* Docket No. 20-07, Order (May 12, 2020). If a filing, such as an appendix, will be over 200 pages, the Commission may require paper copies and the submission may need to be emailed in smaller segments. A party should consult with the Office of the Secretary well ahead of filing any large documents and with any questions about filing procedures.



Erin M. Wirth
Chief Administrative Law Judge